

SENATE No. 1097

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to appealing a notice of disinvitation.

PETITION OF:

NAME:

Rosemarie Rook

DISTRICT/ADDRESS:

SENATE No. 1097

By Mr. Fattman (by request), a petition (accompanied by bill, Senate, No. 1097) of Rosemarie Rook, for legislation to appeal a notice of disinvitation to access a premises. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to appealing a notice of disinvitation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 120 of chapter 266 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following 2 paragraphs:-

3 Whoever, having a good faith reasonable belief that they have a right to access the
4 premises and receives written notice informing them that they are no longer welcome on the
5 premises and entering the premises would reasonably result in criminal trespass pursuant to this
6 section, may file a complaint in the district court seeking to vacate such written notice.

7 An order to vacate such written notice shall be in the discretion of the court if the court
8 determines that the person who directly provided said written notice abused their discretion of
9 control of said premises. The court's order shall be a complete affirmative defense to any
10 prosecution against the person receiving such notice under any provision of this section.